

Satyapal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 August 2014 · Criminal Misc. Writ Petition No. 13967 of 2014 · **FIR quash refused; CrPC 41/41-A arrest; compounding under Supply Code.**

HEADNOTE

The Allahabad High Court refused to quash an FIR under section 135 of the Electricity Act, 2003, holding that it disclosed a cognizable offence. Arrest not having been made, police were directed, if arrest were contemplated for an offence not entailing more than seven years' imprisonment, to comply with section 41(1)(b) read with section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Satyapal filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash the FIR dated 30 July 2014, registered as Case Crime No. 213 of 2014 under section 135 of the Electricity Act, 2003 at Police Station Gauda, District Aligarh. He had not been arrested. Counsel submitted that even if the charge were proved the sentence could not exceed seven years, that arrest should not be mechanical, and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash, arrest safeguards, compounding

HOLDING

An FIR under section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made and the alleged offence cannot entail a sentence of more than seven years, police must follow section 41(1)(b) read with section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE IS COMPOUNDABLE, AND WHETHER COMPOUNDING SHOULD BE ALLOWED ON THE FACTS

The Court only recorded that if the offence is compoundable the petitioner may seek the Supply Code 2005 remedy. ¶ 1